

NON-DISCLOSURE AGREEMENT

Between [Company A] and [Company B]

15 January 2026

This Non-Disclosure Agreement (“Agreement”) is entered into as of the date last signed below by and between the parties identified herein.

1. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

- **“Confidential Information”** means any and all non-public information, whether written, oral, electronic, or visual, disclosed by either party to the other, including but not limited to:
 - Trade secrets and proprietary technology
 - Business plans, financial data, and customer lists
 - Software source code, algorithms, and architectures
 - Marketing strategies and product roadmaps
- **“Disclosing Party”** means the party disclosing Confidential Information
- **“Receiving Party”** means the party receiving Confidential Information
- **“Representatives”** means employees, officers, directors, advisors, and contractors

2. OBLIGATIONS OF THE RECEIVING PARTY

The Receiving Party agrees to:

1. Hold all Confidential Information in strict confidence
2. Not disclose Confidential Information to any third party without prior written consent
3. Use Confidential Information solely for the purpose of evaluating and pursuing the business relationship
4. Protect Confidential Information with at least the same degree of care used to protect its own confidential information, but in no event less than reasonable care
5. Promptly notify the Disclosing Party upon discovery of any unauthorized disclosure

3. EXCLUSIONS

Confidential Information shall not include information that:

1. Is or becomes publicly available through no fault of the Receiving Party
2. Was rightfully in the possession of the Receiving Party prior to disclosure
3. Is independently developed by the Receiving Party without use of Confidential Information
4. Is rightfully obtained from a third party without restriction on disclosure

4. TERM AND TERMINATION

Aspect	Detail
Effective Date	Date of last signature
Initial Term	Two (2) years from the Effective Date
Survival Period	Five (5) years after termination
Termination	Either party, 30 days written notice

5. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of [Jurisdiction], without regard to its conflict of laws provisions.

Any disputes arising out of or in connection with this Agreement shall be resolved through good-faith negotiation. If negotiation fails, disputes shall be submitted to the courts of [Jurisdiction].

6. MISCELLANEOUS

- 1. **Entire Agreement.** This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof.
- 2. **Amendment.** This Agreement may not be amended except by a written instrument signed by both parties.
- 3. **Severability.** If any provision of this Agreement is held invalid, the remaining provisions shall continue in full force and effect.
- 4. **Waiver.** Failure to enforce any provision shall not constitute a waiver of future enforcement.

_____ Signature	_____ Date	_____ Signature	_____ Date
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